

STATUTORY REGULATORY CODE

Uttar Pradesh Building Construction and Development Byelaws 2025

Byelaws for Urban Development Authorities

- Comprehensive spatial regulations for all 22 Urban Development Authorities & AVP
- Self-Certification System: Instant approvals for residential plots up to 500 sqm
- Chapter 3.2.4: Plotted & High-Rise Setbacks, Height & Ground Coverage
- Chapter 9: Compensatory FAR, Purchasable FAR & Premium Purchasable FAR
- Chapter 15: Unified 16 Land Use Zones & Comprehensive Matrix of Permissibility
- Chapter 16: Section 32 Statutory Compounding Framework & Penal Fee Schedules
- Chapter 17: Electric Vehicle Charging Infrastructure (EVCI) Mandatory Standards
- Chapter 18: In-Building Solutions for Common Telecom Infrastructure (CTI/FTTx)

Statutory Authority & Enactment Note

Enacted pursuant to Section 15, 15A, and 53 of the Uttar Pradesh Urban Planning and Development Act, 1973. These byelaws supersede Building Byelaws 2008 and Compounding Byelaws 2009. Applicable uniformly across Lucknow, Noida, Greater Noida, YEIDA, Kanpur, Varanasi, Agra, Prayagraj, Meerut, Ghaziabad, Ayodhya, Bareilly, Gorakhpur, Jhansi, Moradabad, Aligarh, Saharanpur, and all notified Development Authorities in Uttar Pradesh.

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Key Highlights of 2025 Byelaws:

- Full digital integration with single-window online sanctioning and automated deemed approval workflows.
- Strict 10-15 day response limits for 15 Government Departments with automatic deemed NOC generation.
- Transparent calculation matrices for Base FAR, Purchasable FAR, Compensatory FAR, and Section 32 compounding fees.
- Uniform application across all categories of development from plotted residential to 150m+ high-rise structures.

Chapter 1: Short Title & Key Definitions

The 2025 Byelaws define 102 statutory terms under Section 1.2. Key terms are highlighted below:

1. Access / Road Width	Clear approach to a plot from a public road/street forming part of Right of Way (ROW).
14. Basement / Cellar	Lower storey of a building partly or wholly below ground. Max height above ground level shall not exceed 1.20 meters.
17. Building Height	Vertical distance from average road level up to terrace level. Architectural non-functional features excluded.
18. Building Envelope	Horizontal spatial limits up to which construction is permitted after leaving mandatory setbacks.
38. Floor Area Ratio (FAR)	Total covered area on all floors divided by total plot area. Excludes areas specifically exempted under Section 3.2.2.8.
38(a). Compensatory FAR	Additional FAR granted free of cost to compensate for land surrendered for road widening or public utilities.
38(b). Purchasable FAR	Additional FAR permissible over Base FAR on payment of prescribed statutory charges under Chapter 9.
68. Corner Plot	A plot situated at the junction of two or more intersecting/meeting roads (Note-2 applies: side setback = front setback).
69. Island Plot	Plot surrounded by public roads on all four sides. Frontage assigned to the widest approach road.
93. Stilt Floor	Structure on plinth on pillars intended for parking. Excluded from FAR, included in building height.

Chapter 2: Permission for Land Development & Building Construction

- Section 2.1.2(ii) Exemption: Residential plots <= 100 sqm and Commercial plots <= 30 sqm require NO building permission. Online self-declaration with token Re. 1/- fee; no completion certificate required.
- Section 2.1.2(iii) Instant Online Approval: In approved/developed layouts, residential plots <= 500 sqm (except multi-unit) and commercial plots <= 200 sqm receive instant online approval upon certification by a Licensed Technical Person (LTP).
- Section 2.2.3(iii) Deemed NOC: 15 Statutory Departments (Airports, Army, Fire, Metro, Railways, Forest, NHAI, ASI) must respond within 5 to 15 days. If no explicit order is issued, NOC is deemed granted on the 30th day.
- Section 2.7.4 Validity of Permits: Development Permit valid for 5 years (+3 yr extension). Building Permit valid for 5 years (+3 yr revalidation).
- Section 2.8.1 Plinth-Level Inspection: Within 48 hours of reaching plinth level, owner/builder must upload GPS coordinates, digital photographs, and Appendix-12 affidavit.

Chapter 3: Standards for Land Development, FAR & Setbacks

3.2.4.1 Plotted Residential Setbacks (Buildings <= 15m Height / Stilts + 3-4 Storeys)

Plot Area (sqm)	Front (m)	Rear (m)	Side-1 (m)	Side-2 (m)
Up to 150 sqm (Row Housing)	1.0 m	0.0 m	0.0 m	0.0 m
>150 to 300 sqm (Row Housing)	3.0 m	1.5 m	0.0 m	0.0 m
>300 to 500 sqm (Row Housing)	3.0 m	3.0 m	0.0 m	0.0 m
>500 to 1200 sqm (Semi-Detached)	4.5 m	4.5 m	1.5 m	0.0 m
>1200 sqm (Detached)	6.0 m	6.0 m	1.5 m	1.5 m

Statutory Note-2 (Corner Plots & Multi-Road Frontage):

The setback towards every abutting road in corner plots or multi-road plots shall not be less than the prescribed front setback. In approved layouts without specific prescriptions, minimum side setback in corner plots up to 500 sqm shall be 1.5m.

3.2.4.9 High-Rise Setbacks for Buildings with Height Exceeding 15 Meters

Building Height (m)	Front Setback	Rear Setback	Side-1 & Side-2 Setback
>15 to 17.5 m	5.0 m	5.0 m	5.0 m
>17.5 to 21 m	6.0 m	6.0 m	6.0 m
>21 to 27 m	7.0 m	7.0 m	7.0 m
>27 to 33 m	8.0 m	8.0 m	8.0 m
>33 to 39 m	9.0 m	9.0 m	9.0 m
>39 to 45 m	10.0 m	10.0 m	10.0 m
>45 to 51 m	11.0 m	11.0 m	11.0 m
>51 m (High-Rise Pinnacle)	15.0 m	12.0 m	12.0 m

Section 3.2.2.8 Statutory Exemptions from FAR Calculations:

- Lift Machine Rooms, Lift Shafts (counted once on GF), and Lift Lobbies up to 10 square meters.
- Electrical meter rooms, DG set rooms, transformer substations, HVAC chillers, and service ducts.
- Basements within setback lines used for parking, air conditioning plant, STP, and domestic storage.
- Stilt floor used exclusively for parking (mandatory for multi-units; optional for single units).
- Cantilever projections / sunshades up to 0.75m width; Balconies up to 2.0m width in residential/group housing.
- Fire escapes / external staircases, refuge areas (per fire norms), and rooftop rainwater harvesting structures.

Chapter 4 & 5: Residential & Commercial Regulations

4.2.8 Group Housing FAR Matrix by Road Width

Zone & Road Width	Base FAR (BFAR)	Purchasable (PFAR)	Premium (PPFAR)	Max
Built-up (9 - 12m Road)	1.50	0.30	0.30	2.10
Built-up (>12 - 24m Road)	1.50	0.75	0.75	3.00
Built-up (>24 - 45m Road)	1.50	1.50	2.25	5.25
Built-up (>45m Road)	1.50	1.50	Unrestricted	Unrestricted
Non-Built-up (>12 - 24m Road)	2.50	1.25	1.25	5.00
Non-Built-up (>24 - 45m Road)	2.50	2.50	3.75	8.75
Non-Built-up (>45m Road)	2.50	2.50	Unrestricted	Unrestricted

5.1 & 5.2 Commercial Regulations: Bazaar Streets, Complexes & Malls

- Bazaar Street (5.1): Right-of-way minimum 12m. Commercial permitted on Ground & 1st floors; upper floors residential. Full plot depth usable for commercial. Setbacks: 12m road -> 3m front; 18m road -> 4.5m front; 24-30m road -> 6.0m front; 36-45m road -> 7.5m front.
- Commercial Complex & Shopping Malls (5.2): Min road width: Retail shops 6m (built-up) / 9m (non-built-up); Convenient shopping 12m; Commercial complex 12m; Shopping mall 18m.
- Skylighted Atrium (5.2.5.iii): Permissible in shopping malls, not counted in FAR. Max 20% area permissible for temporary kiosks.
- Hotels (5.3): Min 6 rooms. Up to 20 rooms: min road width 9m; >20 rooms: min road width 12m and min plot size 500 sqm.
- Cinemas & Multiplexes (5.4): Min plot size: Single screen 500 sqm (12m road); Miniplex 700 sqm (12m road); Multiplex 3000 sqm (18m road). Min 2 screens mandatory.

Chapter 4.3 Mandatory EWS & LIG Reservations & Shelter Fee Formula:

- 10% each of total units mandatory for EWS and LIG respectively in all housing schemes having >1 unit.
- EWS Plot size: 35-40 sqm | Carpet Area: 30-35 sqm | Annual income limit: <= Rs. 3 Lakhs | Ceiling: Rs. 4.50 Lakhs
- LIG Plot size: 40-50 sqm | Carpet Area: 35-45 sqm | Annual income limit: Rs. 3-6 Lakhs | Ceiling: Rs. 9.00 Lakhs
- Shelter Fee (Plots < 4 Ha): $10\% \times [(Total\ DUs) \times (Min\ EWS\ Carpet + Min\ LIG\ Carpet) \times Circle\ Rate]$
- Incentive FAR: Equivalent to carpet area of constructed EWS/LIG units allowed free of FAR.

Chapter 9, 15 & 16: FAR Computation, Zoning & Compounding

Chapter 9.2.5 Computation of Fee for Purchasable & Premium Purchasable FAR

Fee Formula: $C = Le \times Rc \times P$

Where: C = Total Charge (Rs.), Le = Proportional Land Requirement = Additional Floor Area (FP) ÷ Base FAR

Rc = Current Land Rate (District Magistrate Circle Rate or Authority Rate, whichever is higher)

P = Factor Coefficient: Commercial (PFAR 0.50 / PPFAAR 1.0); Mixed Use (0.45 / 0.90); Office (0.45 / 0.90); Residential (0.40 / 0.80)

Chapter 16: Section 32 Statutory Compounding of Deviations

- Section 16.3.3 Permissible Compounding Limits (Non-Violative Deviations):
- Front Setback: Up to 25% of front setback area, subject to a STRICT ceiling of 1.0 meter (Buildings <= 15m). For buildings >15m: max 10% of setback area up to 1.0m width, subject to Fire NOC.
 - Rear Setback: Plots <= 500 sqm: 100% compoundable provided light and ventilation norms are preserved. Plots >500 sqm: max 10% addition beyond permissible 40% rear coverage.
 - Side Setback: Construction up to a maximum of 25% of width of side setback is compoundable.
 - Ground Coverage & FAR: Maximum 10% of total permissible FAR in addition to permissible ground coverage.
 - Building Height: Maximum 10% height increase without adding extra storeys.

Schedule 16.3.8 Compounding Rates for Ground-Floor Setback Deviations:

Deviation Type	Residential	Commercial	Office	Industrial
Front Setback Deviation	100% Land Rate	200% Land Rate	150% Land Rate	40% Land Rate
Side Setback Deviation	75% Land Rate	150% Land Rate	100% Land Rate	40% Land Rate
Rear Setback Deviation	50% Land Rate	100% Land Rate	75% Land Rate	20% Land Rate
Buildings >15m (All Sides)	100% Land Rate	200% Land Rate	150% Land Rate	40% Land Rate

Section 16.3.2 Non-Compoundable Offences (Mandatory Demolition):

- Constructions on land reserved for public roads, parks, green verges, or public utilities.
- Violations of Master Plan / Zonal Development Plan land use; constructions in illegal colonies.
- Buildings lacking mandatory earthquake-resistant design certification under Chapter 11.8.
- Buildings lacking mandatory Fire Department NOC under Chapter 10.1.3; constructions on water bodies / rivers.
- Encroachments on common areas, parking spaces, or height violations in protected heritage / aviation zones.

Special Technical Mandates & Statutory Appendices

Chapter 10: Fire Prevention & Life Safety

- Mandates Fire Safety Certificate for buildings >15m height, special occupancies, and mixed uses >500 sqm.
- Requires 6.0m clear unobstructed motorable accessway around buildings for fire tender movement.
- Automatic sprinklers, internal/yard hydrants, static water storage, and refuge areas per NBC 2016 Part 4.

Chapter 11: Structural Safety & SDBR (Appendix-14)

- Mandatory Structural Design Basis Report (SDBR) for RCC, Steel, and Load Bearing structures.
- Compliance with IS:456, IS:800, IS:1893 (Seismic Criteria), IS:13920 (Ductile Detailing), and IS:4326.
- Peer review by empanelled structural engineer mandatory for all buildings above 50m height.

Chapter 12: Barrier-Free Accessibility for Differently Abled

- Mandatory accessible entrance ramp with maximum slope 1:12, handrails on both sides, minimum width 1.8m.
- Dedicated accessible toilet (min 1.5m × 1.75m) on every floor; tactile pavers along walkways.
- Accessible parking: minimum 3.6m × 5.0m bay within 30m of building entrance or lift lobby.

Chapter 13: Environmental Sustainability & Green Measures

- Rainwater Harvesting mandatory for all plots ≥ 300 sqm and group housing schemes.
- Solar Water Heating mandatory for hotels, hospitals, hostels, and residential plots ≥ 500 sqm.
- Rooftop Solar PV mandatory on min 25% of plinth area for buildings ≥ 5000 sqm.
- Dual plumbing and greywater recycling mandatory where water discharge exceeds 10,000 liters/day.

Chapter 17: Electric Vehicle Charging Infrastructure (EVCI)

- 20% of total parking capacity must be EV-ready with safety factor of 1.25 on connected power load.
- Public Charging Stations (PCS): min 1 FC per 10 EVs, 1 SC per 3 EVs; CCS & CHAdeMO standards.
- Grid density target: 1 Public Charging Station within a 3km × 3km urban grid.

Chapter 18: Common Telecom Infrastructure (CTI/FTTx)

- Buildings must be digital connectivity ready with dedicated telecom ducts, risers, and MDF rooms.
- Non-discriminatory open access for Telecom Service Providers (TSPs / IP-1s); no commercial rents.

Statutory Appendices (Schedule 1 - 15):

- Appendix-1: 21 Government Orders amended • Appendix-2 & 5: Development & Building Permit Application Forms
- Appendix-3 & 6: Notice of Commencement • Appendix-4 & 7: Forms A, B, C & D Completion Certificates
- Appendix-8 & 9: Building Information Schedule & Structural Safety Certificate
- Appendix-10 & 11: Foundation Design & Completion Certificates • Appendix-12 & 13: Plinth Affidavit & Inspection Notice
- Appendix-14: SDBR Structural Design Basis Report • Appendix-15: Master Plan Use Zones across all 22 UP Authorities